

23STCV24649 23STCV24649

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Case Number: 23STCV24649 Hearing Date: August 3, 2026 Dept: 408

Cross-Defendant Barbara Schoen's Motion for Determination of Good Faith Settlement is GRANTED.

I.

BACKGROUND

On October 10, 2023, Plaintiff Paul

Blinderman ("Plaintiff") filed a complaint against Defendants 1210 North Kings Road Association, Inc. ("1210 North"), Resource Property Management Inc. ("Resource Property"), Asher Kaufman ("Kaufman"), Ji Hoon Lee ("Lee"), and Beuse, Inc. ("Beuse", collectively "Defendants") alleging causes of action for:

1. Breach of CC&RS;
2. Negligence; and
3. Nuisance.

On November 6, 2023, Beuse filed an answer to Plaintiff's complaint.

On November 9, 2023, Lee filed an answer to Plaintiff's complaint.

On December 11, 2023, 1210 North, Resource Property, and Kaufman filed an answer to Plaintiff's complaint.

On August 20, 2024, the court granted Lee's Motion

for Leave to File a Cross-Complaint.

On August 20, 2024, Lee filed a cross-complaint against Cross-Defendant Barbara Schoen ("Schoen") alleging causes of action for:

1. Equitable Indemnity;
2. Contribution and Apportionment; and
3. Declaratory Relief.

On September 24, 2024, the court denied Lee's Motion for Protective Order and granted Plaintiff's Motion to Compel a unit inspection.

On November 12, 2024, Schoen filed an answer to Lee's cross-complaint.

On December 23, 2024, the court granted Lee's Motion for Leave to Leave to File a Cross-Complaint.

On December 31, 2024, Lee filed a cross-complaint against Cross-Defendant John Joseph Kelly ("Kelly") alleging causes of action for:

1. Equitable Indemnity;
2. Contribution and Apportionment; and
3. Declaratory Relief.

On March 7, 2025, at the request of Lee, default was entered against Kelly.

On April 30, 2025, the court denied Plaintiff's Motion to Bifurcate.

On June 11, 2025, Kelly filed an answer to Lee's cross-complaint and a cross-complaint against Lee alleging causes of action for:

1. Complete Indemnity;
2. Equitable Indemnity;
3. Contribution; and
4. Declaratory Relief.

On June 12, 2025, pursuant to stipulation, the court vacated the default entered against Kelly.

On July 15, 2025, Lee filed an answer to Kelly's cross-complaint.

On September 11, 2025, Kelly filed individual Amendments to Cross-Complaint naming Roe 1 and Roe 2 as 1210 North Kings Road Association, Inc., and Beuse, Inc., respectively.

On October 13, 2025, Beuse filed an answer to Kelly's cross-complaint.

On November 17, 2025, the court granted Lee's Motion to Disqualify Counsel and granted Plaintiff's Motion for Protective Order.

On June 15, 2026, Schoen filed this Motion for Determination of Good Faith Settlement. As of July 30, 2026, no opposition or other responsive pleading has been filed.

II.

LEGAL

STANDARD

"Any party to an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged

tortfeasors or co-obligors, upon giving notice in the manner provided by subdivision (b) of Section 1005.” (Code Civ. Proc., § 877.6, subd. (a)(1).)

“In the alternative, a settling party may give notice of settlement to all parties and to the court, together with an application for determination of good faith settlement and a proposed order.” (Code Civ. Proc., § 877.6, subd. (a)(2).) “The application shall indicate the settling parties, and the basis, terms, and amount of the settlement.” (Ibid.) “The notice, application, and proposed order shall be given by certified mail, return receipt requested, or by personal service.” (Ibid.) “Proof of service shall be filed with the court. Within 25 days of the mailing of the notice, application, and proposed order, or within 20 days of personal service, a nonsettling party may file a notice of motion to contest the good faith settlement.” (Ibid.) “If none of the nonsettling parties files a motion within 25 days of mailing of the notice, application, and proposed order, or within 20 days of personal service, the court may approve the settlement.” (Ibid.)

“The issue of the good faith of a settlement may be determined by the court on the basis of the affidavits served with the notice of hearing, and any counteraffidavits filed in response, or the court may, in its discretion, receive other evidence at the hearing.” (Code Civ. Proc., § 877.6, subd. (b).) “A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.” (Code Civ. Proc., § 877.6, subd. (c).) “The party asserting the lack of good faith shall have the burden of proof on that issue.” (Code Civ. Proc., § 877.6, subd. (d).)

When determining whether a settlement was made in good faith, the following factors are considered: (1) a rough approximation of plaintiff’s total recovery and the settlor’s proportionate liability; (2) the amount paid in settlement; (3) the allocation of settlement proceeds among plaintiffs; (4) a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial; (5) the financial conditions and insurance policy limits of settling defendants; and (6) the existence of collusion, fraud, or tortious conduct aimed to injure the interests of the non-settling defendants. (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499.)

“The ultimate determinant of good faith is whether the settlement is grossly disproportionate to what a reasonable person at the time of settlement would estimate the settlor’s liability to be.” (City of Grand Terrace v. Superior Court (1987) 192 Cal.App.3d 1251, 1262 [citation omitted].) “[A] good faith settlement does not call for perfect or even nearly perfect apportionment of liability.” (Abbott Ford, Inc. v. Superior Court (1987) 43 Cal.3d 858, 875 [internal quotations omitted].) “[O]nly when the good faith nature of a settlement is disputed, it is incumbent upon the trial court to consider and weigh the Tech-Bilt factors.” (City of Grand Terrace, supra, 192 Cal.App.3d at 1261.) “That is to say, when no one objects, the barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient.” (Ibid.)

III.

DISCUSSION

On October 10, 2023, Plaintiff filed a complaint alleging that water intruded to Plaintiff’s property causing damages. (Motion, at p. 1; Hsu Decl., ¶ 2.) Plaintiff did not file a claim directly against Schoen. (Ibid.) On August 20, 2024, Lee filed a cross-complaint against Schoen for indemnity. (Ibid.)

Schoen seeks a determination that the settlement between Plaintiff and Schoen was made in good faith. (Motion, at pp. 1-2.) Pursuant to the settlement agreement reached between the parties, Schoen is to pay Plaintiff the total sum of \$50,000.00, in exchange for a fully executed release of all claims. (Id., at p. 2; Hsu Decl., ¶¶ 7-9.)

Schoen lives in the unit directly above Lee and two floors above Plaintiff’s unit. (Hsu Decl., ¶ 3.) Schoen experienced a leak from the refrigerator that leaked into Lee’s unit causing damage to the ceiling but not to the floor. (Id., ¶ 5.) Subsequent to the refrigerator leak, there was a leak in Lee’s unit where a vanity fell on a water supply line sending water into Plaintiff’s unit. (Id., ¶ 6.)

Schoen contends that the settlement amount is within a good faith ballpark of Schoen’s proportionate liability considering the risk and costs associated with a jury trial and given that Schoen possesses

\$50,000.00 in insurance that would be applicable to this claim. (Motion, at p. 4.)

Schoen also contends that settlement was reached through arm's length negotiations and did not involve any collusion or fraud to the non-settling parties. (Ibid.)

The court notes that no opposition or other responsive pleading was filed by a nonsettling party. (Cal. Rules of Court, rule 8.54, subd. (c) ["A failure to oppose a motion may be deemed a consent to the granting of the motion."]; *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.) Thus, "when no one objects, the barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case, is sufficient." (*City of Grand Terrace*, supra, 192 Cal.App.3d 1251, 1261.) Schoen provided grounds for the settlement as well as the settling parties and the basis, terms, and amount of the settlement. (Motion, at pp. 1-4; Hsu Decl., ¶¶ 1-9.) Furthermore, Schoen provided a declaration setting forth a brief background of the case. (Hsu Decl., ¶¶ 2-6.) As such, the court finds that the settlement was entered into in good faith by the parties.

Accordingly, the motion is granted.

IV.

CONCLUSION

Cross-Defendant Barbara Schoen's Motion for Determination of Good Faith Settlement is GRANTED.